

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****ALEXIS ROSARIO-FLORES,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; POLICE
OFFICER WADE C. LIU (Shield No. 7774,
Tax No. 958824); POLICE OFFICER
AHMED; POLICE OFFICERS JOHN
DOE NOS. 1-2;**

Defendants.

Index No.:

SUMMONSPlaintiff designates New York County
as the place of trial

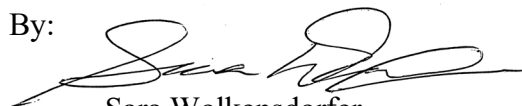
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
June 22, 2023**Rickner PLLC**

By:



Sara Wolkenstorfer

14 Wall Street, Suite 1603

New York, New York 10005

Phone: (212) 300-6506

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Attorney for Plaintiff

TO: THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, NY 10007

POLICE OFFICER WADE C. LIU
Shield No. 7774, Tax No. 958824
New York City Police Department
Transit District 4
101 E. 14th St.
New York, NY 10003

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VERIFIED COMPLAINT

Plaintiff Alexis Rosario-Flores, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2022PI016904.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on June 21, 2023.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff was at all times relevant to this action, a resident of New York County in the State of New York. Plaintiff currently resides in Queens County.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Police Officer Wade C. Liu (Shield No. 7774, Tax No. 958824) (hereinafter "Officer Liu") was at all relevant times described herein an NYPD officer, employed by the City

of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Officer Liu is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Officer Liu is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Officer Ahmed (Shield No. Unknown) was at all relevant times described herein as an NYPD officer, employed by the City of New York. Defendant Ahmed is believed to be a brown-skinned man in his thirties, around five foot seven inches tall, and thin. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment He is sued in an individual capacity.

16. The true name and shield number of Officer Ahmed is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing Officer Ahmed's defense in this action.

17. Defendant Officer John Doe No. 1 (Shield No. Unknown) was at all relevant times described herein as an NYPD officer, employed by the City of New York. Defendant Doe 1 is believed to be a white man, around five foot seven inches tall and approximately 170 pounds. At all relevant times described herein he was acting under color of New York state law, and acting in

the course and scope of the duties attendant to that employment He is sued in an individual capacity.

18. The true name and shield number of Officer Doe 1 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing Officer Doe 1's defense in this action.

19. Defendant Officer John Doe No. 2 (Shield No. Unknown) was at all relevant times described herein as an NYPD officer, employed by the City of New York. Defendant Doe 2 is believed to be a Latinx man, around five foot eight inches tall and approximately 170 pounds. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment He is sued in an individual capacity.

20. The true name and shield number of Officer Doe 2 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing Officer Doe 2's defense in this action.

21. Collectively Officer Liu, Officer Ahmed, Officer Doe 1, and Officer Doe 2 are referred to as the “Individual Defendants.”

22. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

23. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF’S CIVIL RIGHTS

24. The Individual Defendants assaulted and battered Plaintiff, and used excessive force in arresting Plaintiff.

25. On March 28, 2022 at approximately 2:30 a.m., Mr. Rosario-Flores was near the corner of 103rd Street and Lexington Avenue in Manhattan. Suddenly, Defendant Officers Doe 1 and Doe 2 suddenly approached Mr. Rosario-Flores and slammed him face first into a concrete wall.

26. Mr. Rosario-Flores, confused, asked what was happening; the Officer Does simply told him they were conducting an investigation. The Officer Does continued to push him into the wall for approximately the next ten minutes, pushing his face into the wall and their elbows into his back so he could not move.

27. He was then placed in metal handcuffs, put in a patrol car, and transported to Transit District 4.

28. When Mr. Rosario-Flores got to Transit District 4, he was put in leg shackles and then placed in a holding cell. Mr. Rosario-Flores complained about the leg shackles and handcuffs and the officers eventually removed the handcuffs, only.

29. While in the holding cell, Mr. Rosario-Flores got upset and started yelling, demanding to know why he was being held.

30. It was at this point that Officers Liu and Ahmed came into the holding cell with Mr. Rosario-Flores and told him to put his hands in the air and to turn around. When Mr. Rosario-Flores turned around, Officer Liu rammed his head forward into the wall opposite them and his vision went black. He was immediately handcuffed again while Officer Ahmed was elbowing his lower back.

31. Mr. Rosario-Flores was screaming out in pain and eventually, he was taken to Beth Israel Hospital and given pain medication.

32. After the assault, Mr. Rosario-Flores had a big lump on his forehead, suffered from blurry vision, and had pain in his lower back. All these symptoms lasted for approximately 2-3 days after the assault.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

33. Officer Liu has a history of violating people's civil rights while employed by the NYPD, including four Civilian Complaint Review Board complaints.

34. Despite these repeated incidents of misconduct, the City of New York of New York has failed to meaningfully discipline or properly supervise Officer Liu.

THE INJURIES TO PLAINTIFF

35. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

36. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

37. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

38. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

39. The Individual Defendants used physical force against Plaintiff that was unwanted, unlawful, and unconstitutional.

40. Even assuming *arguendo* that Plaintiff's arrest was lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to Plaintiff.

41. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

42. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

43. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

45. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

46. The Individual Defendants thereby displayed deliberate indifference to Plaintiff's rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

47. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

48. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

49. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

50. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

53. As a result, the City of New York is liable for any damages caused, except for punitive damages.

**FOURTH CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

55. The Individual Defendants intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

56. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

57. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

58. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FIFTH CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

59. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

60. The Individual Defendants intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff, handcuffed and shackled him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

61. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

62. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

63. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

65. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

66. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

67. Qualified immunity is no defense to this claim.

68. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

69. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SEVENTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING
AGAINST THE CITY OF NEW YORK**

70. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

71. The City of New York negligently hired, screened, retained, supervised, and trained the Individual Defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff's rights under the Constitution of the United States and the Constitution of the State of New York and committed torts actionable under the common laws and statutes of the State and New York.

72. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

73. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

74. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

75. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

76. The Individual Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

77. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

78. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

79. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**NINTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

81. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

82. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution.

83. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

84. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

85. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
June 22, 2023

Rickner PLLC

By:



Sara Wolkenstorfer

14 Wall Street, Suite 1603

New York, New York 10005

Phone: (212) 300-6506

Fax: (888) 390-5401

Attorney for Plaintiff

ATTORNEY'S VERIFICATION

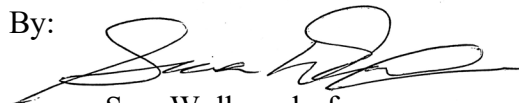
I, Sara Wolkensdorfer, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for Plaintiff Rosario-Flores;
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files, and;
3. This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
June 22, 2023

Rickner PLLC

By:



Sara Wolkensdorfer

14 Wall Street, Suite 1603

New York, New York 10005

Phone: (212) 300-6506

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Attorney for Plaintiff